

COMMITTEE ON FEDERALISM AND FAMILY LAW
SENATE AMENDMENTS TO H.B. 2371
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 25, chapter 3, article 2, Arizona Revised
3 Statutes, is amended by adding section 25-332, to read:

4 25-332. Divorce proceedings; artificial intelligence-assisted
5 arbitration; appeal; definition

6 A. PARTIES TO A DIVORCE PROCEEDING MAY USE ARTIFICIAL
7 INTELLIGENCE-ASSISTED ARBITRATION ONLY IF BOTH OF THE FOLLOWING APPLY:

8 1. BOTH PARTIES PROVIDE WRITTEN CONSENT TO THE ARTIFICIAL
9 INTELLIGENCE-ASSISTED ARBITRATION AND TO WHETHER THE PROCEEDING WILL
10 RESULT IN A RECOMMENDATION OR A BINDING DETERMINATION.

11 2. THE PARTIES DO NOT SHARE MINOR CHILDREN.

12 B. EITHER PARTY MAY WITHDRAW THE CONSENT DESCRIBED IN SUBSECTION A,
13 PARAGRAPH 1 OF THIS SECTION AT ANY TIME BEFORE THE ISSUANCE OF A
14 RECOMMENDATION OR BINDING DETERMINATION.

15 C. A BINDING DETERMINATION THAT IS ISSUED IN AN ARTIFICIAL
16 INTELLIGENCE-ASSISTED ARBITRATION IS APPEALABLE TO THE SUPERIOR COURT THAT
17 WOULD OTHERWISE HAVE JURISDICTION OVER THE MATTER BY FILING A NOTICE OF
18 APPEAL WITHIN TWENTY JUDICIAL DAYS AFTER THE ISSUANCE OF THE
19 RECOMMENDATION OR BINDING DETERMINATION. ON APPEAL, THE SUPERIOR COURT
20 SHALL ADJUDICATE THE CASE, DE NOVO, AS TO BOTH THE LAW AND THE FACTS, AND
21 WITHOUT CONSIDERATION OF THE PROCEEDINGS IN THE ARTIFICIAL
22 INTELLIGENCE-ASSISTED ARBITRATION. THIS SUBSECTION DOES NOT LIMIT ANY
23 RIGHT TO FURTHER APPEAL.

1 D. A BINDING DETERMINATION THAT IS ISSUED IN AN ARTIFICIAL
2 INTELLIGENCE-ASSISTED ARBITRATION MAY BE ENTERED BY ANY COURT HAVING
3 JURISDICTION OF THE MATTER.

4 E. FOR THE PURPOSES OF THIS SECTION, "ARTIFICIAL
5 INTELLIGENCE-ASSISTED ARBITRATION" MEANS A COMPUTATIONAL SYSTEM THAT:

6 1. APPLIES GOVERNING LAWS TO DISCLOSED FACTS.

7 2. GENERATES RECOMMENDATIONS OR BINDING DETERMINATIONS REGARDING
8 DIVORCE-RELATED ISSUES.

9 3. IS NOT A LEGAL PERSON AND DOES NOT EXERCISE INDEPENDENT LEGAL
10 AUTHORITY.

11 <<Sec. 2. Title 25, chapter 4, article 1, Arizona Revised Statutes,
12 is amended by adding section 25-419, to read:

13 25-419. Therapeutic intervention; payment; prohibition;
14 expert testimony; qualifications; definitions

15 [A. NOTWITHSTANDING ANY OTHER LAW OR COURT RULE, IN ANY LEGAL
16 DECISION-MAKING OR PARENTING TIME PROCEEDING, THE COURT MAY NOT ORDER ANY
17 TYPE OF THERAPEUTIC INTERVENTION OR A PAID SERVICE THAT IS PROVIDED BY A
18 PAID PROVIDER OR ORDER ONE PARENT TO PAY FOR ANY TYPE OF THERAPEUTIC
19 INTERVENTION OR A PAID SERVICE THAT IS PROVIDED BY A PAID PROVIDER WITHOUT
20 THE CONSENT OF BOTH PARENTS. EITHER PARENT MAY REVOKE THAT PARENT'S
21 CONSENT AT ANY TIME.

22 B. NOTWITHSTANDING ANY OTHER LAW, IN ANY LEGAL DECISION-MAKING OR
23 PARENTING TIME PROCEEDING, EXPERT TESTIMONY RELATED TO THERAPEUTIC
24 INTERVENTION OR ANY PAID SERVICE THAT IS PROVIDED BY A PAID PROVIDER,
25 CHILD DEVELOPMENT, MENTAL OR PHYSICAL HEALTH, DOMESTIC VIOLENCE OR
26 SUBSTANCE ABUSE IS ADMISSIBLE ONLY IF BOTH OF THE FOLLOWING APPLY:

27 1. THE EXPERT HAS SPECIALIZED TRAINING AND EXPERTISE IN CHILD
28 DEVELOPMENT AND SUBSTANTIAL CLINICAL EXPERIENCE WITH CHILDREN IN A
29 THERAPEUTIC SETTING.

30 2. THE EXPERT'S OPINION IS SUPPORTED BY THE CANONS OF THE EXPERT'S
31 PROFESSION, ADHERES TO THE GUIDELINES OF THE EXPERT'S LICENSING BOARD AND
32 DOES NOT RELY ON THEORIES THAT ARE NOT CLINICALLY ESTABLISHED AS A
33 STANDARD OF CARE.

34 C. A PERSON WHO OFFERS EXPERT TESTIMONY, CONDUCTS AN INVESTIGATION
35 OR EVALUATION OR SUBMITS A REPORT OR RECOMMENDATION TO THE COURT PURSUANT
36 TO SECTION 25-405 OR 25-406 MUST MEET THE QUALIFICATIONS OF SUBSECTION B
37 OF THIS SECTION BEFORE OFFERING EXPERT TESTIMONY, CONDUCTING AN
38 INVESTIGATION OR EVALUATION OR SUBMITTING A REPORT OR RECOMMENDATION TO
39 THE COURT.

40 D. FOR THE PURPOSES OF THIS SECTION:

41 1. "PAID SERVICE" MEANS ANY SERVICE THAT IS PROVIDED IN EXCHANGE
42 FOR ANY FORM OF COMPENSATION.

1 2. "THERAPEUTIC INTERVENTION":
2 (a) MEANS ANY THERAPY, TREATMENT OR COUNSELING PROGRAM THAT IS
3 DESIGNED TO IMPROVE OR MAINTAIN THE PARENT-CHILD RELATIONSHIP OR
4 PARENT-PARENT RELATIONSHIP, OR BOTH.
5 (b) INCLUDES COURT-ORDERED BEHAVIORAL INTERVENTION.]>>

6 Enroll and engross to conform

7 Amend title to conform

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